

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Circuit Judge David M. Ebel**

Date: August 13, 2012

Deputy Clerk: Bernique Abiakam
Court Reporter: Gwen Daniel

Civil Action No.: 11-cv-01934-DME-BNB

JEFFREY A. BOARDMAN,

James Francis Fosnaught
Sander N. Karp

v.

AMERICAN FAMILY MUTUAL INSURANCE
COMPANY, a Wisconsin corporation,

Heather A. Salg

Defendant.

COURTROOM MINUTES

Jury Trial Day 1

8:36 a.m. Court in session.

Court calls case. Appearances of counsel and parties.

Discussion regarding jury selection.

The case will be tried to a jury of 7.

Discussion regarding damages sought.

Discussion regarding sequestration of witnesses.

8:48 a.m. Court in recess.

9:11 a.m. Court in session.

Jury panel present.

Preliminary instruction to the jury panel.

Panel sworn for voir dire.

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13 members of the jury panel called to the jury seats for voir dire.

Introductions by counsel and parties.

The court reads a brief summary of the case to the Jury.

9:30 a.m. Bench conference for private voir dire of Juror No. 215646.

9:33 a.m. Juror No. 100215646 excused for cause.

9:34 a.m. Continued voir dire by the Court.

9:35 a.m. Bench conference for private voir dire of Juror No. 214565.

9:37 a.m. Juror No. 100214565 excused for cause.

9:39 a.m. Bench conference regarding voir dire.

9:40 a.m. Continued voir dire by the Court.

10:26 a.m. Bench conference regarding additional voir dire questions.

10:31 a.m. Continued voir dire by the Court.

10:38 a.m. Bench conference regarding private voir dire with Juror No. 229172.

10:41 a.m. Continued voir dire by the Court.

Plaintiff's peremptory challenges:

100225643
100238230
100216740

Defendant's peremptory challenges:

100218719
100206123
100226388

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Seven jurors sworn to try the case:

**100206936
100201735
100238943
100229172
100238535
100209577
100220824**

10:55 a.m. Jury sworn.

Preliminary instructions by the Court.

10:58 a.m. Jury excused.

11:16 a.m. Court in recess.

11:26 a.m. Court in session.

Discussion regarding trial schedule.

ORDERED: Counsel shall arrive tomorrow at 8:15 a.m.

Discussion regarding stipulated exhibits, and trial schedule.

1:30 a.m. Jury present.

Brief instructions by the Court.

11:40 a.m. Opening statement by Mr. Fosnaught.

11:58 a.m. Opening statement by Ms. Salg.

12:10 p.m. Instruction and admonitions by the Court.

12:12 p.m. Jury excused.

12:14 p.m. Court in recess.

1:31 p.m. Court in session.

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Discussion regarding video-taped deposition to be presented.

1:33 p.m. Jury present.

Stipulations of facts read by the Court.

1:35 p.m. Plaintiff's witness, Jeffrey Arnold Boardman, called and sworn.

1:36 p.m. Direct examination begins by Mr. Fosnaught.

Plaintiff's exhibit 32 offered and admitted.

1:52 p.m. Continued direct examination by Mr. Fosnaught.

Plaintiff's exhibit 31 offered and admitted.

2:36 p.m. Continued direct examination by Mr. Fosnaught.

3:00 p.m. Court in recess.

3:16 p.m. Court in session.

3:18 p.m. Jury present.

3:18 p.m. Continued direct examination by Mr. Fosnaught.

Plaintiff's exhibit 2 offered and admitted.

3:20 p.m. Continued direct examination by Mr. Fosnaught.

Plaintiff's exhibit 24 offered and admitted.

3:24 p.m. Continued direct examination by Mr. Fosnaught.

3:30 p.m. Cross examination begins by Ms. Salg.

Deposition transcript of Jeffrey A. Boardman, opened in court.

3:34 p.m. Continued cross examination begins by Ms. Salg.

3:56 p.m. Redirect examination by Mr. Fosnaught.

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3:59 p.m. Videotaped deposition of Dr. Dennis Eicher.

(4:01 p.m. Dr. Eicher offered and received as an expert in open court.)

4:56 p.m. Videotaped deposition concluded.

4:57 p.m. The Court gives instruction and admonishment to the Jury.

5:00 p.m. Jury excused until tomorrow morning at 9:00 a.m.

Discussion regarding remaining witness schedule and trial schedule.

Counsel shall arrive tomorrow morning by 8:15 a.m.

5:06 p.m. Court in recess.

Trial continued.

Time in court - 6 hours, 24 minutes.